
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 13-011
Mental Health Counselor License of	)	
	)	
MARY MIX	)	SETTLEMENT AGREEMENT AND
License No. 00780	)	FINAL ORDER
Respondent.	)	

Pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2013), the Iowa Board of Behavioral Science ("Board") and Mary Mix ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. Respondent holds Iowa license number 00780 to practice mental health counseling, which expired on September 30, 2014. Respondent has voluntarily not renewed her license, in part to resolve this matter.
2. The Board has jurisdiction over the parties and the subject matter of these proceedings.
3. The Board filed a Notice of Hearing and Statement of Charges against the Respondent on August 14, 2014. A contested case hearing on this matter is scheduled for November 6, 2014.
4. Respondent admits to a misrepresentation in the practice of the profession and a false client record, but denies that the misrepresentation and false client record were purposeful or fraudulent, which would constitute grounds for the discipline agreed to in this Settlement Agreement.
5. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Settlement Agreement. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
6. Respondent is freely and voluntarily entering into this Order.
7. Respondent acknowledges that she has the right to be represented by counsel on this matter. Respondent is represented by Daniel J. Tungesvik, Attorney at Law.
8. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

9. This Order is subject to approval by a majority of the full Board. If the Board fails to approve this Order, it shall be of no force or effect to either the Board or Respondent. If the Board approves this Order, it shall be the full and final resolution of this matter.
10. This Order shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
11. Respondent enters this Settlement Agreement with acknowledgement that this Order will be reported to the National Practitioner Data Bank.
12. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.
13. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

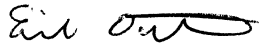
14. Respondent is hereby **CITED** for making a misrepresentation in the practice of the profession and for falsification of a client record and **WARNED** that Respondent's failure to comply with the law governing the practice of behavioral science in Iowa could result in further discipline against Respondent's Iowa mental health counselor license.
15. Respondent's license is already on inactive status. Respondent shall not be allowed to reactivate her license for a period of six (6) months from the date of Board approval of this Order.
16. If Respondent wishes to reactivate her license, she shall complete, in addition to the requirements for license reactivation under 645 IAC 31.16, an additional five (5) hours of continuing education in the area of recordkeeping/billing and five (5) hours of continuing education in the area of ethics. Respondent shall submit certificates to the Board as proof of completion of this requirement. These hours are in addition to the standard continuing education requirements for license reactivation or renewal. Respondent is responsible for all costs associated with obtaining the required continuing education.
17. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the ____ day of _____, 2014.



MARY MIX
Respondent

This Settlement Agreement and Final Order is accepted by the Iowa Board of Behavioral Science on the 6th day of November, 2014.



ERIK OOSTENINK, Chairperson
Iowa Board of Behavioral Science

cc: Laura Steffensmeier
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